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# Bill proposes banning 'Red No. 3' and 2 other additives from foods sold in Arkansas

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Two Republican state lawmakers filed a bill Friday that would have Arkansas follow in the footsteps of California and many European nations by banning three food additives that may be linked to cancer and other diseases.

Senate Bill 9, sponsored by Sen. Breanne Davis (R-Russellville) and Rep. Aaron Pilkington (R-Knoxville), would bar the sale or manufacture of any "food product for human consumption" that contains potassium bromate, propylparaben or erythrosine, a food dye also known as Red No. 3. It was pre-filed in advance of Arkansas's 2025 regular legislative session, which begins in January.

Potassium bromate is a flour additive used in breads and other packaged baked goods. Propylparaben, a preservative, can be found in many products, from corn tortillas to Little Debbie Pecan Spinwheels. Red No. 3 lends an artificially bright cherry-red color to some candies, drinks, cereals and other foods. Long banned in cosmetics because of links to cancer, the dye has remained legal for use in food products; but its status is currently under review by the federal Food and Drug Administration, NBC News reports.

If passed, the law would take effect in January 2027, just like a similar ban signed into law by California Gov. Gavin Newsom in 2023. The California law also bans a fourth additive, brominated vegetable oil. In an October 2023 NPR report on the California bill, one of its sponsors pushed back against the idea the proposal would "ban Skittles" or other beloved snack foods that contain the questionable chemicals:

"This bill will not ban any foods or products — it simply will require food companies to make minor modifications to their recipes and switch to the safer alternative ingredients that they already use in Europe and so many other places around the globe," Democratic Assemblymember Jesse Gabriel told NPR at the time.

Arkansas Republicans taking inspiration from California Democrats on food safety? These are weird times. But Davis and Pilkington at least slipped in a little artificial partisan coloration into their bill: They titled SB 9 the "Make Arkansas Healthy Again Act," a riff on the slogan touted by conspiracy theorist and vaccine skeptic Robert Kennedy Jr., who President-elect Donald Trump has nominated to run the U.S. Department of Health and Human Services.

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